

Approved as to
form only:
Stephanie Boster
Date: 10/3/22

CONTRACT FOR SERVICES
between
THE LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS
BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES

This Contract for Services (hereinafter "Agreement") is made and entered into by and between the Laramie County Community Juvenile Services Joint Powers Board, 310 W. 19th Street, Cheyenne, Wyoming 82001 ("BOARD") and the City of Cheyenne, Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming 82001 ("CONTRACTOR"). The parties agree as follows:

I. PURPOSE

The purpose of this Agreement is to procure from CONTRACTOR juvenile justice and case management services for which the CONTRACTOR will be paid by the BOARD. These are services that could otherwise be rendered directly by the BOARD for the benefit of the public. This Agreement does not constitute a grant. It is a contract to purchase services. These services are described in CONTRACTOR'S *Request for Funding, Fiscal Year 2023* document which is attached to this Agreement as Attachment A and incorporated herein.

II. TERM

This Agreement shall commence on July 1, 2022 and shall remain in effect through June 30, 2024. This Agreement may be renewed subject to the mutual agreement of the parties, in writing, as to term, scope and cost of services, and availability of funding. This Agreement may be terminated in accordance with the terms and conditions set forth herein.

III. PAYMENT

Total payment under this contract shall not exceed \$148,000.00 (One Hundred and Forty-Eight Thousand Dollars and No Cents) Payment will be made in a series of twenty-four monthly payments, with each such monthly payment being for one twelfth (1/24) of the total amount of payment under this contract. Payments may be suspended for any period in which the services are not rendered. Each such monthly payment will be made only after: (1.) receipt of CONTRACTOR's monthly invoice to BOARD, (2.) receipt of funds from the Wyoming Department of Family Services, and (3.) a vote of approval by BOARD to pay the submitted invoice. Payment shall be in accordance with Wyo. Stat. §16-6-602 (as amended).

IV. RESPONSIBILITIES OF CONTRACTOR

A. CONTRACTOR shall provide juvenile justice prevention, diversion, and case management services. The CONTRACTOR may use existing or specifically hired staff to provide

these services as long as licensure and other professional standards are met and services are provided as set forth in Attachment A, CONTRACTOR's *Request for Funding, Fiscal Year 2023*.

B. CONTRACTOR shall provide with their monthly invoice a report of the number of juveniles served during the month and cumulatively by the CONTRACTOR's services.

C. CONTRACTOR shall provide a report within seven days of the conclusion of each month which will include a narrative description of significant issues and opportunities, the number of youth served by these services and the total number of contact hours provided by each program during the previous month. CONTRACTOR shall provide all other reports as may be required by Attachment A or as may be subsequently required by BOARD regarding the nature of the services being provided or other aspects of the CONTRACTOR'S performance under this Agreement.

D. CONTRACTOR shall collect and submit juvenile justice data in accordance with Wyo. Stat. §7-19-503.

E. CONTRACTOR agrees to retain all required records for three (3) years after BOARD makes final payment and all other matters relating to this Agreement are concluded. CONTRACTOR agrees to permit access by the BOARD or any of its duly authorized representatives to any books, documents, papers and records of the CONTRACTOR which are directly pertinent to this specific Agreement for purposes including but not limited to audit, examination, excerpts, and transcriptions. This provision shall not be applicable to confidential information regarding the juveniles served.

V. GENERAL PROVISIONS

A. Amendments. Any party to this Agreement may request changes to this Agreement. Any changes, modifications, revisions, or amendments which are mutually agreed upon by all parties shall be incorporated by written instrument, executed and signed by both parties to this Agreement.

B. Americans with Disabilities Act. All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans With Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

C. Applicable Law and Venue: The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to CONTRACTOR and BOARD in executing this Agreement. This provision is not intended, nor shall it be construed, to

waive the CONTRACTOR's or the BOARD's governmental immunity as provided in this Agreement.

D. Availability of Funds. BOARD's payment obligation is conditioned upon the availability of funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services and equipment provided by CONTRACTOR, the Agreement may be terminated by BOARD at the end of the period for which funds are available. BOARD shall notify CONTRACTOR at the earliest possible time of the services which will or may be affected by a shortage of funds. At the earliest possible time means at least thirty (30) days before the shortage will affect payment of claims if BOARD knows of the shortage at least thirty (30) days in advance. No penalty shall accrue to BOARD in the event this provision is exercised, and BOARD shall not be obligated or liable for any future payments due or for any damages or costs as a result of termination under this provision.

E. Conflict of Interest: BOARD and CONTRACTOR affirm, to their knowledge, no CONTRACTOR employee has any personal beneficial interest whatsoever in the agreement described herein. No staff member of CONTRACTOR, compensated either partially or wholly with funds from this Agreement, shall engage in any conduct or activity which would constitute a conflict of interest relative to this Agreement.

F. Contingencies: CONTRACTOR certifies and warrants no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts or other considerations made contingent upon the award of this Agreement.

G. Discrimination: All parties agree they will not discriminate against any person who performs work under the terms and conditions of this Agreement because of race, color, gender, creed, handicapping condition, or national origin.

H. Entire Agreement: This Agreement and Attachment A represent the entire and integrated agreement and understanding between the parties and supersede all prior negotiations, statements, representations, and agreements, whether written or oral.

I. Force Majeure: Neither party shall be liable to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

J. Governmental/Sovereign Immunity: The BOARD and the CONTRACTOR do not waive their governmental/sovereign immunity by entering into this Agreement and specifically retain immunity and all defenses available to them pursuant to Wyo. Stat. § 1-39-101 *et seq.* and all other state laws. Further the BOARD and the CONTRACTOR retain all immunities and

defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement.

K. Indemnification: Each of the parties to this agreement shall be responsible for any liability arising from its own conduct. None of the parties agrees to insure, defend or indemnify the other.

L. Independent Contractor: The services to be performed by CONTRACTOR and any personnel utilized by CONTRACTOR are those of an independent contractor and not as an employee of BOARD. CONTRACTOR assumes responsibility for all personnel who provide services pursuant to this contract.

M. Notices: All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other party.

N. Severability: If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the BOARD or CONTRACTOR is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.

O. Termination: In addition to termination as permitted under any other terms of this Agreement, this Agreement may also be terminated (a) by any party to this Agreement at any time for failure of any other party to comply with the terms and conditions of this agreement; (b) by any party to this agreement, with thirty (30) days' prior written notice to the other party; or (c) upon mutual written agreement by all parties.

P. Third Parties: The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement and shall inure solely to the benefit of the parties to this Agreement.

Q. Titles Not Controlling: Titles of paragraphs are for reference only and shall not be used to construe the language in this Agreement.

R. Waiver: The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach.

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CONTRACT FOR SERVICES
between
LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES
Signature Page

In witness thereof, the parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions herein.

LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD

By:  Date 9/22/22
David Janes, Chairman

ATTEST:
By:  Date 9/22/22

REVIEWED AND APPROVED AS TO FORM ONLY:

By:  Date 9/23/22
Attorney for Laramie County Community Juvenile Services Joint Powers Board

CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Patrick Collins, Mayor

ATTEST:
By: _____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By: _____ Date _____
Cheyenne City Attorney's Office

ATTACHMENT A

To the Contract for Services between the Laramie County Community Juvenile Services Joint Powers Board and the City of Cheyenne, Office of Youth Alternatives

Request for Funding Fiscal Year 2023

Agency:	City of Cheyenne, Office of Youth Alternatives	
Contact:	Brooks Cotton, Assistant Director	
Mailing Address:	1328 Talbot Court Cheyenne, WY 82001	
Telephone Number:	307-637-6480	Fax Number: 307-637-6487
Email Address:	bcotton@cheyennecity.org	
Funding Request: Court Services' Community Service Coordinator/ Case Manager \$74,000 This request represents \$74,000 per year for fiscal years 2023 and 2024.		

Mission Statement:

The mission of Youth Alternatives is to intervene in the lives of young people at an impressionable stage in their emotional growth and development when positive behaviors are more easily formed. As a result, young people can better explore new, more appropriate behaviors that help them see their strengths and the world as more positive.

Youth Alternatives' Community Service Coordinator/Case Manager Origin:

Most juvenile offenders will have their first encounter with the juvenile justice system due to a misdemeanor violation. In Laramie County, Youth Alternatives has worked in partnership with the Courts for over 50 years to develop and implement programs to protect the community and provide preventive and corrective services to juvenile offenders and their families. Early intervention at the misdemeanor level is the best deterrent to future criminal involvement. The tragic problems our young people face, i.e., drug and alcohol abuse, gangs, suicide, bullying, child abuse, etc., can only be resolved by starting early. Early interventions address delinquent attitudes and behaviors before juveniles are resistant to change. Comprehensive interventions impact the individual's environment in multiple directions.

Funding History:

The Joint Powers Board has been integral to Youth Alternatives' success through its continued support and funding opportunities. One service historically funded by the Joint Powers Board was the Youth Alternatives' Weekenders program. Unfortunately, funding ceased in June 2021 due to the State's decision to no longer fund the Joint Powers boards. The decrease in funding

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has resulted in additional responsibilities for current staff, which ultimately impacted the level of services Youth Alternatives was able to provide to the Courts and the youth of Laramie County.

Statement of Need:

Funding would allow for the reimplementation and sustainability of services directed towards Laramie County's juveniles, 12 to 18 years of age, who have been involved in high-risk behaviors that have brought them to the attention of law enforcement, school and agency personnel, parents, etc. It also includes juveniles who have had their first contact with law enforcement and adjudicated by the Court(s). Specifically, funding for this position will allow Youth Alternatives to staff the court services program at a level that will ensure quality services are provided to the youth and families in the community. If funding is not provided, the reduction of preventative services will continue to impact our community's youth and families negatively. Additionally, juveniles are at a higher risk of being detained without the ability to provide intervention services. With the pandemic allowing for the return of students in the schools and normal activities to resume, case numbers through the court are on the rise. With this in mind, it will be imperative that necessary services are in place to address these issues.

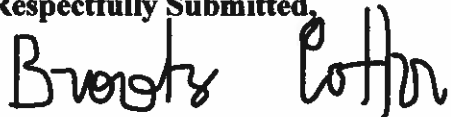
Objectives:

This funding would allow Youth Alternatives to provide alternative sentencing opportunities and support for juveniles facing sentencing in Laramie County Courts. Prevention services and alternative sentencing options include community service and diversion case management. Laramie County Commissioners Juvenile Services Joint Powers Board and Youth Alternatives support the significant research finding that preventative services like diversion programs deter delinquent behaviors and increase the success and positive future outcomes for our youth.

Budget:

The cost associated with providing these services would total \$74,000. This funding would allow additional diversion services along with allowing Youth Alternatives to return to providing services at the level pre Covid.

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Brooks Cotton". The signature is written in a cursive, flowing style.

**Brooks Cotton , Assistant Director
Office of Youth Alternatives**